

Project No.: AUH 1080

Project Name: KHAZNA DATA CENTER, AL MAFRAQ – AUH04

SUPPLY AGREEMENT FOR

BUSBAR SYSTEM

SUPPLY AGREEMENT ORDER NO.

BKG/AUH1080/KDC/53730075/SA-007

Between

BK GULF LLC

AND

PRIME TECHNOLOGIES LLC

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**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

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This Agreement is made and entered in on this day of , 20[....]

BK Gulf LLC, a company registered under the laws of the United Arab Emirates, with Commercial Licence No. 224429, having its registered office at P.O. Box 10079 and its offices at Jebel Ali First Industrial Area, fax no.+971-4-8801603, Dubai, United Arab Emirates, represented by its General Manager, Basheer Massad holding UAE identification no. 784-1973-2621095-8 (hereinafter called "**the Purchaser**") of the one part;

AND

Prime Technologies LLC registered under the laws of the United Arab Emirates, with commercial licence no. 230954 having its registered office at PO Box 26736, Dubai, United Arab Emirates, represented by its Manager Alok Kumar Ramakant Dube Indian National and holder of UAE identification no 784-1968-4242726-0 (hereinafter called "**the Vendor**"); of the other part.

The Purchaser and the Vendor are individually referred to as "**Party**" or collectively referred to as "**the Parties**" in this Agreement.

WHEREAS, the Purchaser wish to purchase Goods described hereunder from the Vendor.

NOW IT IS HEREBY AGREED as follows:-

1. DEFINITIONS

- 1.1. "**Affiliate Company**" means in relation to the Purchaser, on or after entry into the Contract, any subsidiary of the Purchaser, or any holding company controlling the Purchaser and any other subsidiary of that holding company.
- 1.2. "**Conditions**" means the terms and conditions of contract for purchase of goods stated herein.
- 1.3. "**Contract**" means this Agreement together with the Particular Conditions and the Schedules hereto together with such other documents as are specified in and attached to the First Schedule hereto but excluding any Supplier's standard printed conditions that may be included or referred to in any documents, which shall constitute the entire contractual agreement between the Purchaser and Vendor.
- 1.4. "**Defects Liability Period**" means the period for notifying defects as stated in the Main Contract or as otherwise notified to the Vendor by the Purchaser.
- 1.5. "**Delivery Address**" means the delivery address set out in Schedule Four.
- 1.6. "**Delivery Date**" means the date specified by the Purchaser for the delivery of the Goods in this Agreement.
- 1.7. "**Goods**" means the plant, equipment, materials or other tangible goods or things

(including services) to be supplied as specified in this Agreement.

- 1.8 **"Main Contract"** means any contract between the Purchaser and a third party, the purpose of which the Goods are required.
- 1.9 **"Payment Terms"** means the terms of payment as set out in Schedule Six hereto.
- 1.10 **"Purchaser"** means the person, firm or corporation placing an order for the Goods and shall where appropriate also mean such person, firm or corporation for whom the Goods are being ordered.
- 1.11 **"Purchaser's Code of Conduct"** means the Purchaser's code of conduct as provided to the Vendor and available for inspection as requested hard copies can be provided at the Purchaser's registered office address or any other address notified by the Purchaser to the Vendor.
- 1.12 **"Vendor"** means the person, firm or corporation with whom an order for the Goods is placed.

2. TERMS OF CONTRACT

- 2.1. The terms of the Contract (including these Conditions) are to the exclusion of any other terms that the Vendor seeks to impose or incorporate, or which are implied by trade, custom, practice or course of dealing.
- 2.2. Except as set out in these Conditions, no changes shall be made to the Contract, including the introduction of any additional terms and conditions, unless such changes are otherwise agreed to by the Purchaser in writing.
- 2.3. No communication from the Purchaser's servants or agents shall be of contractual effect or relied on as a representation, condition or warranty unless confirmed in writing by the Purchaser and all the Vendors conditions of sale however communicated are hereby expressly excluded unless specifically and expressly incorporated.
- 2.4. The Vendor waives any right it might otherwise have to rely on any term endorsed upon, delivered with or contained in any documents of the Vendor that is inconsistent with the Contract.
- 2.5. It is the Vendor's responsibility to obtain the approval of the Employer and/or the Employer's Technical Advisor of the Vendor's technical submission, design, selections, products and the likes for the Goods proposed by the Vendor. Should the Vendor fail to obtain such approval in a timely manner, the Purchaser may terminate the Contract in accordance with clause 14.2 (vi).

3. STANDARD OF GOODS

- 3.1. The Vendor shall ensure that the Goods shall:
- (i) correspond with their description and any application specification as stated in

Schedule One hereto; and

- (ii) be of satisfactory quality and fit for purpose (including for the purposes of the Main Contract).

4. VENDOR'S DRAWINGS AND MANUALS

- 4.1. The Vendor shall without additional cost to the Purchaser, supply all required drawings, whether needed for information only, approval or final record, operation instruction, maintenance manuals, fabrication reports, test certificates or other such documents at the times and in the number of copies as specified in this Agreement or any attachments thereto, to a standard and detail necessary to ensure the proper installation, operation, maintenance and repair of the goods. By approving any of the Vendor's drawings and details as herein before mentioned, the Purchaser shall in no way be deemed to have assumed any responsibility for any design criteria or the accuracy of any design detail.

5. COMPLIANCE WITH LAWS

- 5.1. In performing its obligations under the Contract and in relation to the Goods, the Vendor will comply with all applicable government codes, laws and regulations or customs in the territory in which the Goods are to be used. Before delivery of the Goods, the Vendor will have the Goods stamped with whatever markings are so required.
- 5.2. The Vendor shall ensure that at all times it has and maintains all the licences, permissions, authorisations, consents and permits that it needs to carry out its obligations under the Contract and in respect of the supply of the Goods to the Purchaser.

6. VENDOR WARRANTIES

- 6.1. All Goods furnished by the Vendor shall be in accordance with the Purchaser's specification or instructions and shall be designed and manufactured to the highest standards and of the best quality incorporating first class workmanship and materials throughout.
- 6.2. The Vendor has been informed that the Goods are required for the purposes of the Main Contract and the Vendor confirms that he has full knowledge of and will comply in all applicable respects with the provisions of the Main Contract including but not limited to those relating to materials, guarantees, warranties and defects liability as may be stated in Schedule Two hereto. The Purchaser shall supply the Vendor with a copy of any other such provisions that are not stated in Schedule Two upon request (other than details of the Purchaser's prices and rates).
- 6.3. Save as otherwise required by the provisions of these Conditions, the Vendor shall ensure that no act or omission in relation to the Vendors performance of the Contract

shall constitute, cause or contribute to any breach by the Purchaser of the Main Contract. The Vendor shall assume and perform hereunder all the obligations and liabilities of the Purchaser under the Main Contract in relation to materials guarantees and defects liability for the Goods.

- 6.4. Notwithstanding any other obligations imposed hereunder, and as a minimum obligation, if any part of the Goods does not meet any required specification, or is found defective, or if any defect or fault occurs in any of the Goods whether due to design (if furnished by the Vendor), materials, workmanship, or operating characteristics of the Goods, any time within the Defects Liability Period, the Vendor shall at his own expense, promptly make such alteration, repairs and replacements as are necessary, so that the said part conforms to the specifications and fulfils the preceding guarantees to the Purchaser's satisfaction. If the fault or failure to function properly cannot be corrected, the faulty item shall be removed by or at the expense of the Vendor and/or the Vendor shall, without cost to the Purchaser, promptly furnish the satisfactory item which completely fulfils the specification and requirements of the Contract.

7. INDEMNITY

- 7.1. The Vendor shall indemnify the Purchaser and any Affiliate Company against all liabilities, costs, expenses, damages and losses (including liability under the Main Contract), which the Purchaser or any Affiliate Company may incur by reason of any breach of this Contract or of any applicable law or regulation by the Vendor.
- 7.2. The Vendor shall indemnify the Purchaser and any Affiliate Company against any loss, including but not limited to indirect and consequential losses, loss of profit, loss of reputation, penalties, damage or injury to persons or property arising as a result to defective workmanship, unsatisfactory quality of the Goods or failure to comply with the Purchaser's specifications and instructions or any claim for which the Purchaser or any Affiliate Company shall be held responsible at law.
- 7.3. If the Vendor, in performing the Contract, furnishes the services of himself, his agent or employee, the Vendor agrees to assume all liability with respect to the services of himself, his agent or employee whilst on the construction site or any other premises in relation to the Main Contract and/or the Contract, and to indemnify and hold the Purchaser and any Affiliate Company harmless from all claims, suits, actions and proceedings whatsoever which may be brought on account of injuries or damage to the Vendor, his agent or employee, or to other persons or property on account of the said services.

8. DELIVERY

- 8.1. It is an express condition that the stipulations as to the delivery time are of the essence of the Contract and the Vendor guarantees delivery of all the Goods at the places and at the times stated in Schedule Four hereto. If the Vendor delivers Goods

after the Delivery Date, the Purchaser may reject the goods. The Purchaser may however, at no extra cost, defer the Delivery Date or the point of delivery by giving reasonable notice in writing to the Vendor.

- 8.2. Unless the Purchaser expressly instructs otherwise, the Vendor will deliver all goods to the Delivery Address. Unless expressly stated in the terms of this Contract, the Vendor assumes responsibility for all shipping and delivery charges including, without limitation, customs, duties, costs, taxes and insurance.
- 8.3. The Purchaser will hold any goods rejected under this Agreement at the Vendor's risk and expense, including storage charges, while awaiting the Vendor's shipping instructions. The Vendor will bear all return shipping charges. The Purchaser may, in its sole discretion, destroy or sell at a public or private sale any rejected Goods for which the Purchaser does not receive return shipping instructions within a reasonable period of time and the Purchaser may apply the proceeds of sale to any expenses it has incurred including, without limitation, storage charges.

9. INSPECTION OF GOODS AND PACKAGING

- 9.1. All Goods and packaging are to be made available for inspection at all reasonable hours and full facilities are to be afforded to the Purchaser or its agents for such purpose at no extra cost to the Purchaser. The Vendor is to pay for and carry out such tests and supply such certificates in connection herewith as may be specified in the Contract or Main Contract.
- 9.2. By inspecting any of the Goods or packing, the Purchaser shall in no way be deemed to have assumed any responsibility for their accuracy or compliance with any laid down standard and the Vendor shall be considered to be an expert with regard to all rules and regulations relating specifically to such of the Goods as may be of an hazardous or unusual nature.
- 9.3. The Purchaser may reject any or all of the Goods which do not confirm to the applicable requirements. At the Purchaser's option, and in addition to any other remedy under this Contract or at law, the Purchaser may (a) return the non-conforming goods to the Vendor for a refund or credit; (b) require the Vendor to replace the non-conforming goods so they meet the applicable requirements. The Purchaser's payment to the Vendor for Goods prior to rejection of such Goods for non-conformance will not be deemed acceptance by the Purchaser.

10. UNAUTHORISED CHARGES

- 10.1. The Purchaser shall not accept any charges for preparation, packing, boxing, crating or any other charges applicable to the point of delivery, unless specifically provided for in the Contract.
- 10.2. In the case of Goods forwarded or tran-shipped, unloaded or otherwise handled by the Purchaser's employees or agents, the costs thereof will be reimbursed to the

Purchaser unless otherwise agreed.

11. PRICE

- 11.1. No variation in the Contract price will be accepted without the Purchaser's prior written approval. Invoices must be sent to the Purchaser's head office. The Vendor will reimburse the Purchaser all costs and expenses incurred resulting from failure to comply with this clause.
- 11.2. Any agreed variation to the Contract price shall be valued in accordance with the rates or prices as stated in Schedule Five hereto.
- 11.3. The Purchaser reserves the right to deduct or set off from any monies due, or becoming due to the Vendor, any monies due from the Vendor to the Purchaser in respect of Goods supplied or rendered by the Purchaser on behalf of the Vendor in completing this contract including, but not limited to, as a result of defects in the Goods supplied or delays in supplying the Goods, and any other sums payable by the Vendor to the Purchaser in respect of Goods supplied or rendered by the Purchaser on behalf of the Vendor in completing this Contract and any other sums payable by the Vendor to the Purchaser hereunder or any amounts the Vendor owes the Purchaser or any Affiliate Company.

12. TITLE AND RISK

- 12.1 The title and risk in the Goods shall pass to the Purchaser on completion of delivery. Until completion of the delivery has taken place, title and risk shall remain with the Vendor.

13. PAYMENT

- 13.1 The Vendor's invoices will be paid according to the Payment Terms. Time in connection with payment will be calculated from the date of the Purchaser's receipt of the Goods. If documents require correction, the time of payment will be calculated from the date of receipt by the Purchaser of the Vendor's corrected documents. Notwithstanding the Payment Terms, the Purchaser is not obliged to make any payments to the Vendor until the Vendor has signed and returned a copy of these Conditions to the Purchaser.
- 13.2 The Vendor shall at his own expense provide to the Purchaser all of the bonds, guarantees or other documents as stated in Schedule Three hereto, executed by a first class bank approved by the MEP Contractor and regulated in the UAE. The Purchaser is not obliged to make any payment to the Vendor until the Vendor has provided to the Purchaser all of the aforementioned bonds, guarantees or other documents.

14. TERMINATION

- 14.1. The Purchaser may terminate the Contract in whole or in part at any time, for any reason, by giving the Vendor seven (7) days written notice. The Purchaser shall pay the Vendor for all goods delivered as at the date notice is served on the Vendor save that the Purchaser shall not be obliged to pay more than can be recovered in respect thereof under the Main Contract. The Purchaser will have no further payment obligation to the Vendor as a result of or in connection with any termination.
- 14.2. Notwithstanding clause 14.1, the Purchaser may terminate the Contract with immediate effect and without the incurrence of any penalty or other charge whatsoever by giving written notice to the Vendor if:
- (i) the Vendor is in breach of the Contract and such breach is not capable of remedy; or
 - (ii) the Vendor is in material breach of the Purchaser's Code of Conduct;
 - (iii) the Vendor is in breach of this Contract and such breach has not been remedied within seven (7) days of the Purchaser giving the Vendor written notice requiring the same; or
 - (iv) the Vendor takes any step or action in connection with its entering administration, provisional liquidation or any composition or arrangement with its creditors (other than in relation to a solvent restructuring), being wound up (whether voluntarily or by order of the court, unless for the purpose of a solvent restructuring), having a receiver appointed to any of its assets or ceasing to carry on business, or taking any step or action in connection with the Vendor being made bankrupt, entering any composition or arrangement with his creditors, having a receiver appointed to any of his assets, or ceasing to carry on business, or the Vendor suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business; or the Vendor's financial position deteriorates to such an extent that in the Purchaser opinion the Vendor's capability to adequately fulfil its obligations under the Contract has been placed in jeopardy; or
 - (v) the Vendor assigns, transfers or sublets the Contract or any part thereof in contravention of clause 16 herein and in addition the Purchaser shall be at liberty to take possession of all plans, equipment, materials and any other documentation that is held by or on behalf of the Vendor.
 - (vi) the Vendor fails or unreasonably delays to obtain the approval of the Employer, Engineer and/or the Employer's Technical Advisor of the Vendor's technical submission for the Goods proposed by the Vendor.
- 14.3. Notwithstanding clause 14.1, the Purchaser may suspend or cancel the Contract in whole or in part by written notice to the Vendor. In the event of suspension or cancellation of the Contract the Purchaser shall make payment to the Vendor of all Goods delivered by the Vendor, prior to such cancellation, subject to the payment terms and clause 11 of these Conditions save that the Purchaser shall not be obliged

to pay more than has been recovered in respect thereof under the Main Contract unless the cancellation results from a breach of the Main Contract by the Purchaser. In the event of suspension of the Main Contract for a period in excess of 180 days, either party may elect to cancel this Agreement by serving the other party with fourteen (14) days written notice.

- 14.4. Any termination or cancellation occurring under this Agreement is done so with the consent to the Parties and without the need to obtain any order from the court.

15. PATENTS

- 15.1 The Vendor shall fully indemnify the Purchaser against any action, claim, demand, costs, charges or expenses arising from or incurred by reason of any infringement of any letters patent, registered design, or trade name by the use or sale of the Goods, and against all costs and damages which the Purchaser may incur in any action for such infringement, or for which the Purchaser may become liable in any such action. In the event of a claim being made, or action brought against the Purchaser, arising out of the matters referred to in this Clause, the Vendor shall be promptly notified thereof, and shall, at his own expense, conduct all negotiations for the settlement of the same and any litigation that may arise therefrom. The Purchaser may, at the request of the Vendor, afford all available assistance for any such purpose and shall be repaid any expense incurred in so doing by deduction from the Vendor's account.

16. ASSIGNMENT

- 16.1 Neither the Contract nor any part thereof shall be assigned, transferred or sublet by the Vendor except by the prior written approval of the Purchaser.

17. SUBCONTRACTING

- 17.1. The Vendor shall not subcontract any or all of its rights under the Contract without the prior written approval of the Purchaser. If the Purchaser approves any subcontracting, the Vendor shall remain responsible for all the acts and omissions of its subcontractors as if they were his own.

18. CONFIDENTIALITY

- 18.1. A party (receiving party) shall keep in strict confidence all confidential information concerning the disclosing party's business, its products and services which the receiving party may obtain. The receiving party shall only disclose such confidential information to those of its employees, agents and subcontractors who need to know it for the purpose of discharging the receiving party's obligations under the Contract, and shall ensure that such employees, agents and subcontractors comply with the obligations set out in this clause as though they were a party to the Contract. The receiving party may also disclose such of the disclosing party's confidential information as is required to be disclosed by law, any governmental or regulatory authority or by a court of competent jurisdiction.

- 18.2. The Vendor shall not, without the prior written approval of the Purchaser, publicize or otherwise disclose the name of the Purchaser or the destination or description of the goods or services supplied in connection with this Agreement and shall treat the terms and conditions and existence of the Contract as confidential.

19. ENTIRE AGREEMENT

- 19.1 The Contract constitutes the entire agreement between the Vendor and the Purchaser and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

20. WAIVER

- 20.1 Except as set out in these Conditions, a waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent breach or default. A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not: waive that or any other right or remedy; or prevent or restrict the further exercise of that or any other right or remedy.

21. SEVERANCE

- 21.1 If any provision or part-provision of the Contract is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of the Contract.

22. NOTICES

- 22.1 Any notice or other communication given to a party under or in connection with the Contract shall be in writing, addressed to that party at its registered office (if it is a company) or its principal place of business (in any other case) or such other address as that party may have specified to the other party in writing in accordance with this clause, and shall be delivered personally, commercial courier,. A notice or other communication shall be deemed to have been received: if delivered personally, when left at the party's registered address, if delivered by commercial courier, on the date and at the time that the courier's delivery receipt is signed.

23. COMPLIANCE

- 23.1. Each of the Vendor and the Purchaser agrees not to pay, promise to pay, or authorise the payment of any money or anything of value, whether directly or indirectly, to any person (whether a government official or private individual) for the purpose of illegally or improperly obtaining any benefit including but not limited to the payment of any commission or fee in connection with the Contract or inducing any government official or

to make a decision or to illegally or improperly assist in obtaining or retaining business, or to take any other improper action, in connection with the Contract or the sale of Goods, or to establish or maintain any undisclosed or unrecorded funds or assets or cause the making of any artificial entries in any books and records in connection with any Goods supplied under the Contract.

- 23.2. The Vendor acknowledges that it shall operate in accordance with the Purchaser's Code of Conduct.
- 23.3. The Vendor confirms that this agreement is signed by its representative holding a valid Power of Attorney and authorized to sign for and on behalf of the Vendor to execute and enter into such agreement with the Purchaser, a true copy of which is attached in Schedule Seven hereto.

24. GOVERNING LAW

- 24.1 This agreement shall be governed by and construed in accordance with the laws of the Emirate of Dubai and UAE Federal Laws.

25. DISPUTES

- 25.1 Any dispute arising out of or in connection with this Contract including its formation, binding effect, performance, interpretation, breach or termination, and any related non-contractual obligations, shall be referred to and finally determined by arbitration under the rules of the Abu Dhabi International Arbitration Centre (the "Centre" and the "Rules" respectively) as amended by this clause, which Rules are incorporated into this Contract. The tribunal shall consist of three arbitrators, one appointed by each party, unless the parties agree the joint appointment of one arbitrator. The chair shall be appointed by the parties by exchanging lists of candidates, repeated if necessary until a common candidate is identified, and the first in order candidate that appears on both lists shall be appointed as chair. If within 7 days of one party providing a list the other party fails to produce their list, the chair shall be the first candidate on the list so provided subject always to approval and appointment by the Centre's Court. If within 21 days of the first lists being exchanged no common candidate has been identified, then the chair shall be selected and appointed by the Centre's Court. The chair however appointed shall have practiced in arbitration, with construction experience, for over fifteen years. The tribunal shall apply the IBA Rules on the Taking of Evidence in International Arbitration (2020 Revision). The tribunal is reminded strictly to determine the dispute on the burden of proof. The terms of reference of any tribunal-appointed expert may not extend beyond consideration of the memorials with their documentary evidence and the witness and any expert evidence submitted by the parties on the record. The tribunal shall award the costs and expenses of the arbitration, including party legal costs and shall take into consideration the relative success of each head of claim and counterclaim and the reasonableness of the conduct of the parties in the arbitration. The seat of arbitration shall be the Abu Dhabi Global Market ("ADGM"), but hearings may be held in any convenient place. The arbitration shall be conducted in the English language.

26. VALUE ADDED TAX

26.1 The Price shall be exclusive of Value Added Tax. No invoice or any payment in accordance with Clause 13 shall be due and payable until the Purchaser receives:

- a) a valid Trade Licence in the name of the Vendor for the activities subject to this Supply Agreement;
- b) a valid Tax Registration Certificate in the name of the Vendor;
- c) a Tax invoice addressed to the Purchaser stating:
 - 1. the Vendor's full legal name, registered address, licence number (all as stated on its licence) and VAT registration number;
 - 2. the Purchaser's full legal name, registered address, licence number (all as stated on its licence) and VAT registration number;
 - 3. a unique sequential tax invoice number for each invoice;
 - 4. the date of issue of the tax invoice;
 - 5. a description of the good or service being supplied; and for each good or service, the unit price and the quantity or volume supplied;
 - 6. the rate of VAT for each item of goods or services supplied.
- d) the tax invoice must be delivered to the Purchaser's Head Office in Jebel Ali within seven working days from the date of issue.

26.2 Any amendments or cancellations of previously issued tax invoices will only be accepted when the Purchaser receives:

- a) a Tax Credit Note addressed to the Purchaser stating:
 - 1. the Vendor's full legal name, registered address, licence number (all as stated on its licence) and VAT registration number;
 - 2. the Purchaser's full legal name, registered address, licence number (all as stated on its licence) and VAT registration number;
 - 3. the date of issue of the Tax Credit Note;
 - 4. The words "Tax Credit Note" clearly displayed on the document;
 - 5. The value of the supply shown on the original Tax Invoice previously issued, the correct amount of the value of the supply, the difference between those two amounts, and the VAT charged that relates to that difference in AED;
 - 6. a brief explanation of the reason for the issuing of the Tax Credit Note;
 - 7. reference to the original tax invoice to which the Tax Credit Note relates to.

27. PERSONAL DATA PROTECTION

27.1. The Parties undertakes, where applicable, to comply with the UAE Federal Law 45 of 2021

Protection of Personal Data Law or any other equivalent applicable legislation and to procure that our employees, agents and contractors observe the provisions of such law. The legal basis for the data processing is our business relationship (potential or actual) and to comply with legal obligations. The data will be retained as long as business communications may be ongoing.

27.2. The Parties:

- a. acknowledges and specifically consents to the other party collecting, exchanging, processing, transferring or disclosing data (including personal data) and sharing, storing or transmitting such data where necessary or desirable for the purposes of pursuing commercial activities in the ordinary course of business and for any particular contracts or projects.
- b. shall ensure that every individual in respect of whom their name, location, email address, telephone number, WhatsApp number, UAE ID or other personal information in accordance with Law 45 of 2021 (the "Personal Data") will be provided to the other party, has been notified of and agreed to the collection, processing, disclosure and transfer of Personal Data before that Personal Data is provided to the other and shall at the same time advise the individual that they have rights of access to, and correction of, their Personal Data by notifying the other at the usual business address or the notice addresses in any particular contract.
- c. shall use appropriate and commercially reasonable technical and organisational measures and procedures to prevent violation, penetration or illegal or unauthorized processing of such Data. In the event of a Data breach, each undertakes to notify the other at the usual business address or notice address in any particular contract.

PARTICULAR CONDITIONS

TO THIS AGREEMENT

The preceding clauses of this Agreement shall be amended (where applicable) by the following Particular Conditions.

Clause 7 Add new clause 7.4

“Notwithstanding anything to the contrary in these Conditions the Vendor’s total aggregate liability out of or being related to this Contract shall not exceed 100% of the total Agreement Price, provided however, that the Vendor’s liability is not limited under the Contract with respect to (i) claims arising from death and/or personal injury, or (ii) claims arising from gross negligence or wilful misconduct by the Vendor, or (iii) the liability that cannot be limited according to applicable Law”.

SCHEDULE ONE

SPECIFICATION OF GOODS

1.1. Specifications:

<u>S/L#</u>	<u>Specification Description</u>	<u>Section Ref#</u>	<u>Revision</u>
1	Summary_KDC-AUH04	01 10 00	
2	Suppl1 - Specimen Warranty	01 70 00 01	REV 00
3	Execution and Closeout Requirements	01 70 00	REV 00
4	Project Site Design Criteria-AUH	01 80 13	
5	Sustainable Design_LEED	01 81 13	REV 00
6	Basic Electrical Requirements	26 05 01	REV 00
7	Basic Electrical Materials and Methods	26 05 05	REV 00
8	BUSBAR TRUNKING SYSTEM	26 25 00	REV 00
9	Fault Calc and Prot Dev Coordination Study	26 05 75	REV 00
10	Electrical Monitoring System	26 09 13	REV 00
11	Approved List	01 82 13 01	REV 02
12	Approved Manufacturers	01 82 13	REV 00
13	Suppl 1 -Deliv_by_Phase	01 10 00 01	REV 00
14	Administrative Requirements	01 30 00	REV 00
15	Environmental Health & Safety	01 31 00(a)	REV 01
16	Construction Progress Schedule	01 32 16	REV 00
17	Submittal Procedures	01 33 00	REV 00
18	Risk Management	01 34 00	REV 00
19	Quality Requirements	01 40 00	REV 00
20	Mock-ups	01 43 39	REV 00
21	Temporary Facilities and Controls	01 50 00	REV 00
22	Geotechnical Site Investigation	01 51 00	REV 00
23	Protection Existing Struct and Ut	01 52 00	REV 00
24	Temp Ind Air Qual Control	01 57 26	REV 00
25	Product Requirements	01 60 00	REV 00
26	Construction Waste Management-Disposal	01 74 19	REV 00
27	Seismic Anchorage and Bracing	01 88 15	REV 00
28	Supplement 1 - Commissioning	01 91 00 01	REV 00
29	Supplement 2 - Commissioning	01 91 00 02	REV 00
30	Supplement 3 - Commissioning	01 91 00 03	REV 00
31	Data Centre Commissioning	01 91 02	REV 00
32	Enclosed Bus Assemblies	26 25 00	REV 00
33	BMS I/O Points list		
34	BOQ-Busbar AUH04 take off(13.05.2025a)		
Note: As applicable to the scope of vendor			

Drawings:

S/L#	Drawing Description	Drawing Ref #	
1	POWER SINGLE LINE DIAGRAM-TYPICAL POD	KDC-AUH4-EL-SLD-001	
2	POWER SINGLE LINE DIAGRAM-POD01	KDC-AUH4-EL-SLD-002	
3	POWER SINGLE LINE DIAGRAM-OFFICE	KDC-AUH4-EL-SLD-003	
4	MV SINGLE LINE DIAGRAM	KDC-AUH4-EL-SLD-004	
5	FIRST FLOOR MEP EQUIPMENT LAYOUT	KDC-AUH4-MEP-GA-1F-001	
6	GROUND FLOOR MEP EQUIPMENT LAYOUT	KDC-AUH4-MEP-GA-GF-001	
7	GROUND FLOOR OVERALL BUSBAR (2025-08-07)		
8	FIRST FLOOR OVERALL BUSBAR (2025-08-07)		
9	POD MDB & UMDB PANEL PHASE SEQUENCE - ALFANAR		
10	OFFICE MDB & UMDB PANEL PHASE SEQUENCE - ALFANAR		
11	UPS PHASE SEQUENCE -VERTIV		
12	TR-11 TRANSFORMER CONNECTION DRAWINGS (4000A)-TESAR		
13	TR-11 TRANSFORMER CONNECTION DRAWINGS (2750A)-TESAR		
14	BUSDUCT ARRANGEMENT DRAFT-TRANSFORMER-TESAR		
Note: As applicable to the scope of vendor			

1.3 Scope of Works:

Engineering, design verification, supply and delivery to site of Busbars & Accessories, supervision on installation, testing and commissioning (Levels 1 to 5), warranty certificates (24 months from Taking Over Certificate) in an approved form, FAT, spares, Warranty Period, Operation and Maintenance manual and Trainings, handing over (WIR Code A status), obtaining approvals and close out documentations in full compliance with the design drawings, project requirements and specifications.

The Vendor is responsible to supply the equipment, components, and accessories in full compliance with the project requirements, and project design criteria, in the required quality all as per the specifications and compliant with the approved material submittals, obtaining approval of the Employer/Employer's TA (Code A status), and authorities (ADDC, LEED/ESTIDAMA, UPTIME, etc), within the project program at no additional cost to the Purchaser.

RESPONSIBILITY MATRIX

No	Description	Vendor	Purchaser	Remarks
1	Design and Engineering	✓		
1.1	Material Submittal	✓		
1.2	Voltage Drop Calculation	✓		

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

1.3	Documentation required for approval (MS for FAT & SAT, O&M and Training Manual, installation MSRA and T&C MSRA, FAT & SAT reports, Uptime certification)	✓		
1.4	Isometric Drawings - submission and manufacture order pieces	✓		
1.5	Coordination for spatial requirement and other services		✓	Vendor for technical advice
1.6	Site Survey and Site Measurement	✓		
1.7	EMS/BMS interface compatibility of PMU as applicable	✓		
2	Material Supply			
2.1	Power Busbar, Tap-off with Breaker+PMU, Panel/UPS/Transformer flange and End caps	✓		
2.2	Power Busbar Support hangers	✓		Support clamps by Vendor and threaded rod & Anchor bolts by Purchaser
2.3	Identified Labels of busbar runs and tap-offs as per approved project reference		✓	
2.4	Data Rack Smart busway, End feed and End Caps	✓		
2.5	Data Rack Smart busway support system hangers	✓		Support clamps by Vendor and threaded rod & Anchor bolts by Purchaser
2.6	Delivery to Site	✓		
2.7	Offloading under supervision of Vendor		✓	Purchaser Scope with Supervision of Vendor
2.8	Provide supporting docs such as certificates and test reports, etc for MIR	✓		
2.9	Upon delivery at site Material verification & Inspection at site	✓		In coordination with Purchaser

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

3	Installation			
3.1	Supervision	✓		
3.2	Site Marking/Survey of Busbar alignment before support and Busbar fixing	✓		In coordination with Purchaser
3.3	Installation		✓	Supervision by Vendor only, execution by Purchaser.
3.4	Ensure Busbar Alignment before joint fixing	✓		
3.5	Support Sizing	✓		
4	Testing			
4.1	Pre-Torque - Megger Testing	✓		
4.2	Torque Test - All busbar joints	✓		
4.3	Witnessing - All LV Distribution Board and Transformer Flange Installation & fixing	✓		
4.4	Witnessing - All LV Distribution Board and Transformer energization	✓		
4.5	Megger Test - Insulation Resistance Test - Cold Test	✓		
4.6	Thermal Imaging - All Joints energized with load (Level 5)	✓	✓	Supervision by Vendor
4.7	Preparation/review of MSRA as per project requirements	✓		
4.8	Fit for energization certificate by Vendor	✓		
4.9	Point Resistance	✓		
4.1	Attendance during integration Test & Commissioning as required	✓		
5	Close Out Documents			
5.1	O&M Manual	✓		
5.2	Training Manual	✓		
5.3	Client Training	✓		
6	Spare Part			

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

6.1	Recommended Spare List	✓		As per project requirements
7	Warranty			
7.1	2 Year Warranty from final TOC	✓		

SCHEDULE TWO

WARRANTIES

Vendor shall provide warranty for 24 months from Taking Over Certificate (TOC). The warranty shall be for parts and labour/technicians and shall be extended in case of any defects during warranty period. Vendor to comply with the warranty template provided by the Purchaser in line with the project specifications and standard. Refer Appendix A

Appendix A.

Warranty Specimen Wording

COMPANY HEADED PAPER

Employer :
Project :
Subject : **MANUFACTURER'S WARRANTY**
Beneficiary of Warranty : (Insert the name of Authority)
Name of Product : (Insert the name of the Product)
Description of Product : (Insert the description of the product)
Manufacturer's Name : (Insert the Manufacture Name and Address)
Warranty Period : (Insert warranty Period in words e.g: Two years from date of final Taking Over Certificate for the works.)

We hereby confirm the Warranty Period of (XXX) effective from the date of the final Taking Over Certificate of the Works as issued by the Employer under the Main Contract and this Warranty fulfils the requirements of the Main Contract as particularly described within Employer's Requirements, Specification Section(s) 01 70 00, Subsection 1.12.

We confirm that the supplied products are free from defects regarding workmanship and materials when under normal use and service. This warranty does not extend to any damage resulting from abuse, neglect, faulty operational conditions and voltage fluctuations beyond tolerance or improper handling of equipment.

We acknowledge that the Employer may, in its sole discretion, assign any right, title, benefit or interest in relation to this Warranty to any person.

For & on behalf of

Company Name :

Authorized Name :

Designation :

Signature :

Company Stamp :

MANUFACTURER'S WARRANTY INFORMATION

Name of Product	XXXX
Description of Product	XXXX
Contract Specification references (s)	XXXX
Manufacturer's Details	Company Name, Company Address ,Company Telephone Number
Installer's Details	Company Name, Company Address ,Company Telephone Number

SCHEDULE THREE

BONDS/GUARANTEES

1. Performance Bank Guarantee - The Vendor shall furnish a Performance Bank Guarantee in the format provided in Appendix C hereto, amounting to 5% of the Total Agreement Price within 10 days of the date of this Agreement. The guarantee shall be executed by a first-class bank approved by the Contractor and regulated in the UAE. The guarantee shall be valid until the issuance of the Defects Liability Certificate or 24 months from TOC date of 31st May 2027, whichever occurs earlier.

2. Advance Payment Guarantee — The Vendor shall provide an Advance Payment Bank Guarantee in the format provided in BKG format in Appendix B upon Material Submittal Approval for 05% of contract value.

Form of Advance Payment Bank Guarantee

As per Appendix B

Appendix B.

Form of Advance Payment Bank Guarantee

[Supply Agreement signed before Advance Payment made]

BK Gulf LLC
PO Box. 10079
Dubai, United Arab Emirates

Guarantee No.
Dated :
Amount :

Dear Sirs,

Subject: Advance Payment Guarantee No.:

For Dhs. [Insert amount in words and figures] ([5%] of Purchase Price)

Supply Agreement: [Insert]

Contract No.: [Insert]

WHEREAS

- (A) We have been informed that [correct legal name of Vendor's company] (hereinafter called the "Vendor") has entered into a supply agreement bearing reference [reference] on [date] with BK Gulf LLC for the provision of [brief description of works] (hereinafter called the "Supply Agreement") as part of the Main Works (as defined in the Supply Agreement) being carried out by you pursuant to your contract KDC/AUH4/GC/001/EPC for the Khazna Data Center AHU4 Project in the Emirate of Abu Dhabi
- (B) Furthermore, we understand that, according to the conditions of the Supply Agreement:
- (i) an advance payment in the sum of [amount in words] United Arab Emirates Dirhams (AED [amount in figures]) is to be made by you upon receipt of an advance payment guarantee; and
 - (ii) the Supply Agreement contains an obligation on the part of the Vendor to obtain and deliver to you a Vendor's advance payment guarantee in an amount equal to the Vendor's advance payment.
- (C) The Vendor has therefore requested, and we have therefore agreed to issue this guarantee on the terms and conditions set out herein.

NOW WE UNDERTAKE AND GUARANTEE AS FOLLOWS

1. At the request of the Vendor, we [name of Bank] whose registered address in Dubai is [registered address and P.O. Box] hereby irrevocably and unconditionally undertake to pay you any sum or sums not exceeding in total an amount of [amount in words] United Arab Emirates Dirhams (AED [amount in figures]) upon receipt by us of your first demand in writing.
2. The maximum amount of this guarantee shall be progressively reduced by the amount of the advance payment repaid by the Vendor as notified to us from time to time by letter signed and stamped by you, which shall be presented to us. This guarantee shall expire upon our receipt

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

of your signed and stamped letter indicating that the Vendor has made full repayment of the amount of the advance payment. Any demand for payment under this guarantee must be received by us at this office on or before the expiry.

3. Any payment by us hereunder shall be immediately available and freely transferable in UAE Dirhams free and clear of and without deduction for or on account of any present or future taxes, levies, imposts, duties, charges, fees, deductions or withholdings of any nature whatsoever and by whomsoever imposed.
4. Our obligations hereunder shall not be discharged or otherwise prejudiced or adversely affected by any amendment, modification, extension or termination which may be made to the Supply Agreement or the work to be performed thereunder.
5. When the period of validity of this guarantee has expired, it must be returned to us for cancellation but we shall be released from any obligation hereunder if, in breach of this provision, such return has not taken place.
6. This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758 (the "**URDG Rules**"). The supporting statement under Article 15(a) thereof is excluded.
7. Without prejudice to the application of the URDG Rules, this guarantee shall be governed by and construed in accordance with the laws of and applicable in the Emirates of Dubai, U.A.E.

Yours faithfully

Duly authorized for and on behalf of

[Bank]

[Signature of authorized signatory]

Name: [Name]

[seal of the bank]

[Signature of authorized signatory]

Name: [Name]

Form of Performance Bank Guarantee

As per Appendix C

Appendix C.

Form of Performance Bank Guarantee

[Supply Agreement signed before Supply Agreement Works commence]

BK Gulf LLC
PO Box. 10079
Dubai, United Arab Emirates

Guarantee No.

Dated :

Amount:

Dear Sirs,

Subject: Performance Guarantee No.: [no.]

For [amount in words] United Arab Emirates Dirhams (AED [amount in figures]) (10% of Purchase Price)

Supply Agreement: [Supply Agreement Particulars]

Beneficiary: BK Gulf LLC

WHEREAS

- (A) We have been informed that [correct legal name of Vendor's company] (hereinafter called the "Vendor") has entered into a supply agreement bearing reference [reference] on [date] with BK Gulf LLC for the provision of [brief description of works] (hereinafter called the "Supply Agreement") as part of the Main Works (as defined in the Subcontract) being carried out by you pursuant to your contract KDC/AUH4/GC/001/EPC for the Khazna Data Center AHU4 Project in the Emirate of Abu Dhabi .
- (B) We understand that, according to the conditions of the Supply Agreement, the Vendor is required to provide to you performance guarantee in the sum of [amount in words] United Arab Emirates Dirhams (AED [amount in figures]) for the due performance of its undertakings and obligations pursuant to the Supply Agreement.
- (C) The Vendor has therefore requested, and we have therefore agreed to issue this guarantee on the terms and conditions set out herein.

NOW WE UNDERTAKE AND GUARANTEE AS FOLLOWS

1. We, [Bank] whose registered office in Dubai is [registered office], hereby irrevocably and unconditionally undertake that forthwith upon our receiving a written demand, made by you or on your behalf and authorized by you, stating that in your sole and absolute judgment the Vendor has failed to observe or perform one or more of the terms, conditions or provisions of the Supply Agreement on its part to be observed or performed, we will, notwithstanding any objection which may be made by the Vendor or otherwise, pay to you or as you may direct in UAE Dirhams such an amount as you may in such demand require not exceeding (when aggregated with any such amount(s) previously so paid) the sum of [amount in words] United Arab Emirates Dirhams (AED [amount in figures]); which represents an amount equal to ten (10) percent of the Purchase Price set out in the Supply Agreement.

2. Partial and multiple claims under this guarantee are permitted.
3. This guarantee shall come into effect upon issuance and shall remain valid until:
 - a. advised by you in writing that the Vendor has executed and completed the supply of Goods and/or associated services set out in the Supply Agreement and remedied any defects therein in accordance with the Supply Agreement, and
 - b. the Defects Liability Certificate has been issued by the Employer (as that party is defined in the Supply Agreement), and
 - c. you return this original Performance Guarantee along with all amendments thereto, if any, to us for cancellation.
4. Any payment by us hereunder shall be immediately available and freely transferable in UAE Dirhams free and clear of and without deduction for or on account of any present or future taxes, levies, imposts, duties, charges, fees, deductions or withholdings of any nature whatsoever and by whomsoever imposed.
5. Our obligations hereunder constitute direct, primary, irrevocable and unconditional obligations, shall not require any previous claim against the Vendor, and shall not be discharged or otherwise prejudiced or adversely affected by any time, indulgence or forbearance which you may grant to the Vendor, any amendment, modification or extension which may be made to the Supply Agreement or the work to be performed thereunder, any intermediate payment or other satisfaction made by us, any changes in the constitution or organization of the Vendor, or any other matter or thing which in the absence of this provision would or might have that effect except a discharge or amendment hereof expressly made or agreed to by you in writing.
6. This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758 (the "**URDG Rules**"). The supporting statement under Article 15(a) thereof is excluded.
7. Without prejudice to the application of the URDG Rules, this guarantee shall be governed by and construed in accordance with the laws of and applicable in the Emirates of Dubai, U.A.E.

Yours faithfully,

Duly authorised for and on behalf of

[Bank]

[Signature of authorized signatory]

Name: [Name]

[seal of the bank]

[Signature of authorized signatory]

Name: [Name]

SCHEDULE FOUR

DELIVERY SCHEDULE

	DELIVERY DATE
DELIVERY OF POD-1 BUSBAR SHALL BE	15 Nov, 2025
DELIVERY OF POD-2 BUSBAR SHALL BE	15 Dec, 2025
DELIVERY OF POD-3 BUSBAR SHALL BE	15 Jan, 2026
DELIVERY OF POD-4 BUSBAR SHALL BE	15 Feb, 2026

Warranty Commence from FINAL TOC	31 July, 2027
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Inco Terms – Delivered to Site Basis (DDP – Delivered Duty Paid)

Delay Damages: if the Vendor fails to comply with the dates stipulated in the above Delivery Schedule, then Purchaser reserves the right to levy delay damages at the rate of 0.1% of the total Agreement Price per day for each day of delay until actual delivery is received by the Purchaser, up to a maximum of 5% of the total Agreement Price value of the order.

Delivery of the Goods, shall be on or before the dates stipulated above subject to manufacturing clearance and approvals of GA drawings (Isometrics) as to be confirmed by the Purchaser's Sr. Electrical Engineer, subject to Material Technical Submittal being submitted within five (5) working days from the Purchaser's instruction and any comments thereon being responded within five (5) working days from receipt and until Code A or B (with minor comments) approval is obtained.

Any delay solely attributable to the Vendor shall be dealt with by the Vendor at no additional cost to the Purchaser.

With regards to the delivery of goods for optional POD 5 and POD 6, following the Vendor's receipt of instruction from the Purchaser, delivery by the Vendor shall be 16-20 weeks from manufacturing clearance provided by the Purchaser's Sr. Electrical Engineer's.

SCHEDULE FIVE

PRICES AND RATES

The lumpsum price of **AED 13,305,000.00** (Dirhams Thirteen Million Three Hundred and Five Thousand Only) on delivered to site basis, as per schedule below (the Price). The unit rates and prices shall be fixed for the duration of the Project.

A. BASE SCOPE

SI N O	DESCRIPTION	QUANTIT Y	UNIT	UNIT PRICE	EXTENDED PRICE
	HORIZONTAL IP65 & VERTICAL IP55				
	ALL ACCESSORIES ARE WITH WORKMANSHIP PRICES ONLY				
A	POWER BUSBAR				
I	POD 1, 2, 3, 4, OFFICE X & OFFICE Y				
1	BB : 650A	429.00			
1	KXC-II 06507-B-STD-650 A- BOLT-ON-STANDARD LENGTH-4.5W	318.00	M	AED677.60	AED215,477.97
2	KXC-II 06507-B-X-650 A- BOLT-ON-SPECIAL LENGTH-4.5W	111.00	M	AED677.60	AED75,214.01
3	KXC-II 06507-B-D-650 A- BOLT-ON-DOWNWARDS ELBOW-4.5W	31.00	PCS	AED427.82	AED13,262.35
4	KXC-II 06507-B-R-650 A- BOLT-ON-RIGHT ELBOW- 4.5W	17.00	PCS	AED427.82	AED7,272.90
6	KXC-II 06507-B-P11-650 A- BOLT-ON-PANEL CONNECTION-4.5W	5.00	PCS	AED641.73	AED3,208.63
7	KXC-II 06507-B-S-650 A- BOLT-ON-END CLOSER- 4.5W	5.00	PCS	AED56.57	AED282.83
2	BB : 1000A	967.00			
1	KXC-II 10507-B-STD-1000 A- BOLT-ON-STANDARD LENGTH-4.5W	825.00	M	AED1,057.19	AED872,183.96
2	KXC-II 10507-B-X-1000 A- BOLT-ON-SPECIAL LENGTH-4.5W	142.00	M	AED1,057.19	AED150,121.36
3	KXC-II 10507-B-D-1000 A- BOLT-ON-DOWNWARDS ELBOW-4.5W	60.00	PCS	AED418.30	AED25,098.18

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

4	KXC-II 10507-B-R-1000 A-BOLT-ON-RIGHT ELBOW-4.5W	40.00	PCS	AED418.30	AED16,732.12
5	KXC-II 10507-B-P11-1000 A-BOLT-ON-PANEL CONNECTION-4.5W	20.00	PCS	AED627.45	AED12,549.09
6	KXC-II 10507-B-S-1000 A-BOLT-ON-END CLOSER-4.5W	20.00	PCS	AED60.14	AED1,202.88
3	BB : 1600A	1,278.00			
1	KXC-II 17507-B-STD-1600 A-BOLT-ON-STANDARD LENGTH-4.5W	1,080.00	M	AED2,041.58	AED2,204,910.59
2	KXC-II 17507-B-X-1600 A-BOLT-ON-SPECIAL LENGTH-4.5W	198.00	M	AED2,041.58	AED404,233.61
3	KXC-II 17507-B-D-1600 A-BOLT-ON-DOWNWARDS ELBOW-4.5W	60.00	PCS	AED576.74	AED34,604.27
4	KXC-II 17507-B-R-1600 A-BOLT-ON-RIGHT ELBOW-4.5W	60.00	PCS	AED576.74	AED34,604.27
5	KXC-II 17507-B-P11-1600 A-BOLT-ON-PANEL CONNECTION-4.5W	20.00	PCS	AED865.15	AED17,303.01
6	KXC-II 17507-B-S-1600 A-BOLT-ON-END CLOSER-4.5W	20.00	PCS	AED69.05	AED1,380.96
4	BB : 2500A	466.00			
1	KXC-II 28507-B-STD-2750 A-BOLT-ON-STANDARD LENGTH-4.5W	300.00	M	AED3,521.49	AED1,056,446.33
2	KXC-II 28507-B-X-2750 A-BOLT-ON-SPECIAL LENGTH-4.5W	166.00	M	AED3,521.49	AED584,566.97
3	KXC-II 28507-B-D-2750 A-BOLT-ON-DOWNWARDS ELBOW-4.5W	126.00	PCS	AED979.98	AED123,477.85
4	KXC-II 28507-B-R-2750 A-BOLT-ON-RIGHT ELBOW-4.5W	84.00	PCS	AED979.98	AED82,318.57
5	KXC-II 28507-B-P11-2750 A-BOLT-ON-PANEL CONNECTION-4.5W	84.00	PCS	AED1,468.82	AED123,380.70
6	FLEXIBLE SET	2.00	PCS	AED6,752.03	AED13,504.06
5	BB : 3200A	140.00			

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

1	KXC-II 33507-B-STD-3200 A-BOLT-ON-STANDARD LENGTH-4.5W	75.00	M	AED4,704.42	AED352,831.84
2	KXC-II 33507-B-X-3200 A-BOLT-ON-SPECIAL LENGTH-4.5W	65.00	M	AED4,704.42	AED305,787.59
3	KXC-II 33507-B-R-3200 A-BOLT-ON-RIGHT ELBOW-4.5W	40.00	PCS	AED1,305.63	AED52,225.02
4	KXC-II 33507-B-P11-3200 A-BOLT-ON-PANEL CONNECTION-4.5W	40.00	PCS	AED1,958.44	AED78,337.53
6	BB : 4000A	380.50			
1	KXC-II 41507-B-STD-4000 A-BOLT-ON-STANDARD LENGTH-4.5W	210.00	M	AED6,241.77	AED1,310,770.96
2	KXC-II 41507-B-X-4000 A-BOLT-ON-SPECIAL LENGTH-4.5W	170.50	M	AED6,241.77	AED1,064,221.18
3	KXC-II 41507-B-D-4000 A-BOLT-ON-DOWNWARDS ELBOW-4.5W	60.00	PCS	AED1,483.09	AED88,985.40
4	KXC-II 41507-B-R-4000 A-BOLT-ON-RIGHT ELBOW-4.5W	40.00	PCS	AED1,483.09	AED59,323.60
5	KXC-II 41507-B-P11-4000 A-BOLT-ON-PANEL CONNECTION-4.5W	40.00	PCS	AED2,224.64	AED88,985.40
6	FLEXIBLE SET	20.00	PCS	AED10,350.64	AED207,012.83
7	TAP-OFF BOXES - POWER				
1	KXP 2551-250 A-PLUG-IN-TAP-OFF BOX-EMPTY-3P-SUITABLE FORMCCB-5W-CU (Equipped with (ABB 250A 3P36kA MCCB XT3N)+(AUX)+(SOR)+(Analyzer)+(CT250/5A)+(RS485)+(ELR Single CBCT) +(Core Balanced C 30MA)+(ABB 6A 2P6kA)	400.00	PCS	AED3,213.26	AED1,285,303.97
8	FIXING CLAMPS				
1	HORIZONTAL FIXING CLAMPS - POWER	5,500.00	SET	AED4.02	AED22,084.86
B	DATA RACK BUSBAR				
I	KO BUSBAR SYSTEM				
1	BB-250A	3,056.00			

**CONDITIONS OF CONTRACT FOR PURCHASE
AND SUPPLY OF GOODS**

1	KOC 0256-II-B-STD-250 A-PLUG-IN-STANDARD LENGTH-4.5W	2,460.00	M	AED608.21	AED1,496,188.20
2	KOC 0256-II-B-X-250 A-PLUG-IN-SPECIAL LENGTH-4.5W	596.00	M	AED608.21	AED362,491.13
3	KOC 0255-II-B1-250 A-FEEDER BOX-4.5W - LEFT	400.00	PCS	AED901.11	AED360,445.88
4	KO-II-02CU END CLOSER	400.00	PCS	AED79.17	AED31,669.52
2	TAP-OFF BOXES - DATARACK				
1	KOP 1251-B-125 A-PLUG-IN-DATA TAP-OFF BOX-5W(C=) (OPT1/(Equipped with ABB 32A 3P 10kA MCB + LUMEL Analyzer + METE 5PIN 32ASocket 4073256F7)	1.00	PCS	AED1,222.09	AED1,222.09
2	KOP 1251-B-125 A-PLUG-IN-DATA TAP-OFF BOX-5W(C=) (OPT2/(Equipped with ABB 32A 3P 10kA MCB + METE 5PIN 32A Socket4073256F7)	1.00	PCS	AED763.80	AED763.80
3	KOP 1251-B-125 A-PLUG-IN-DATA TAP-OFF BOX-5W(C=) (OPT3/(Equipped with ABB 63A 4P 10kA MCB + LUMEL Analyzer + METE 5PIN 63ASocket 406534)	1.00	PCS	AED1,492.65	AED1,492.65
4	KOP 1251-B-125 A-PLUG-IN-DATA TAP-OFF BOX-5W(C=) (OPT4/(Equipped with ABB 63A 4P 10kA MCB + METE 5PIN 63A Socket 406534)	1.00	PCS	AED1,034.50	AED1,034.50
3	FIXING CLAMPS				
1	KO-1AI/2Cu HORIZONTAL FIXING UNIT (PAINTED)	4,100.00	SET	AED14.75	AED60,484.58
GRAND TOTAL				AED 13,305,000.00	

Note: It's Supplier responsibility to arrange the Busbar's and it's accessories as per the approved Isometric layouts.

B. OPTIONAL SCOPE

Subject to instruction by the Purchaser and to replace the Data Rack Busbar identified in item A. Base Scope above.

C	DATA RACK BUSBAR				
	KD BUSBAR SYSTEM				
1	BB-250A	3,056.00			
1	KDC 02205-B-STD-250 A-BOLT-ON STANDARD LENGTH 5W(C=RAL7012)	2,460.00	M	AED942.32	AED2,318,098.55
2	KDC 02205-B-X-250 A-BOLT-ON SPECIAL LENGTH 5W	596.00	M	AED1,130.65	AED673,866.71
3	KDC 08205-B-B11-250A/800A-BOLT-ON FEEDER BOX 5W(C=RAL7012)((Empty)	400.00	PCS	AED2,069.26	AED827,702.17
2	TAP-OFF BOXES - DATARACK				
1	KDP 1226-B-125 A-PLUG-IN-DATA CENTER TAP-OFF BOX-6W(C=)(OPT1/(Equipped with ABB 32A 3P 10kA MCB + LUMEL Analyzer + METE 5PIN32A Socket 4073256F7)	1.00	PCS	AED1,222.48	AED1,222.48
2	KDP 1226-B-125 A-PLUG-IN-DATA CENTER TAP-OFF BOX-6W(C=) (OPT2/(Equipped with ABB 32A 3P 10kA MCB + METE 5PIN 32A Socket4073256F7)	1.00	PCS	AED764.59	AED764.59
3	KDP 1226-B-125 A-PLUG-IN-DATA CENTER TAP-OFF BOX-6W(C=)(OPT3/(Equipped with ABB 63A 4P 10kA MCB + LUMEL Analyzer +METE 5PIN63ASocket 406534)	1.00	PCS	AED1,495.53	AED1,495.53
4	KDP 1226-B-125 A-PLUG-IN-DATA CENTER TAP-OFF BOX-6W(C=)(OPT4/(Equipped with ABB 63A 4P 10kA MCB + METE 5PIN 63A Socket 406534)	1.00	PCS	AED1,037.64	AED1,037.64
	FIXING CLAMPS				
1	THREADED ROD SUPPORT - M10	4,100.00	SET	AED32.56	AED133,495.56
GRAND TOTAL				AED 3,957,683.23	

Note: the rates and prices stated in this schedule shall apply to all items required for the project, including for the Employer's Option of the 10MW fit out of POD 5 & POD 6, subject to the Purchaser issuing an instruction to the Vendor within 15 months from the date of this Agreement.

SCHEDULE SIX

PAYMENT

Payment Terms

- 1.1 Incoterm: DDP to KHAZNA DATA CENTER, AL MAFRAQ – AUH04, Project site.
- 1.2 The Purchaser shall pay to the Vendor the value of the materials delivered to the Purchaser as per the below terms:
 - a. Advance Payment through direct bank transfer upon Material Submittal Approval against an Advance Payment bank guarantee (as per Appendix B enclosed hereto) for 5% of Agreement Price, which shall be amortized / reduced according to partial invoice payment as per item b & c. below.
 - b. 95% shall be released through 90 days transferrable Letter of Credit against material delivery to site.
 - c. Prior to material delivery to site, the Purchaser reserves the right to conduct material inspection the at the Vendor's facility. The Vendor shall notify the Purchaser in advance to arrange inspection. The Letter of Credit (LC) shall only be utilized once the Purchaser has issued Material Inspection Approval confirming compliance.
 - d. 5% shall be released through Current Dated Cheque (CDC) upon receipt of final TOC to be received from the Employer or the date of 31st May 2027, whichever occurs first.
- 1.3 Payments shall be subject to receipt of original Performance Bank Guarantee as per Schedule Three.
- 1.4 Partial delivery is acceptable, and payments shall be claimed against each partial shipment.
- 1.5 Partial LC based on forecast deliveries shall be acceptable.
- 1.6 Applicant bank charges on Applicant Account and Beneficiary Bank charges on beneficiary account, Any LC amendment charges except LC value increase by beneficiary and LC transfer to second beneficiary and other associated costs shall be borne by the Vendor.
- 1.7 All unit rates and prices are in UAE Dirhams and exclusive of VAT.
- 1.8 All Invoices shall be submitted along with the following documents:
 - a. Original Invoices
 - b. Truck Consignment Notes
 - c. Packing List
 - d. Certificate of Origin
 - e. Approved Material Inspection Report from the Purchaser
- 1.9 Payment shall be made against Invoices complete with all necessary substantiation documents verified and approved by the Purchaser.
- 1.10 Production shall commence upon confirmation of manufacturing clearance by the Purchaser's engineering team and shall not be linked to the issuance of the LC SWIFT.
- 1.11 The LC will only be transferable to one other party, the Manufacturer M/s EAE. All associated charges shall be borne by the Vendor.

SCHEDULE SEVEN

POWER OF ATTORNEY

Refer attached Power of Attorney.



رخصة صناعية Industrial License

تفاصيل الرخصة / License Details

License No.	230954	رقم الرخصة
Company Name	PRIME TECHNOLOGIES (L.L.C.)	اسم الشركة
Business Name	PRIME TECHNOLOGIES L.L.C	الاسم التجاري
License Category	Dep. of Economic Development	فئة الرخصة
Legal Type	Limited Liability Company(LLC)	الشكل القانوني
Expiry Date	10/05/2026	تاريخ الإصدار
D&B D-U-N-S ® N 535267785	الرقم العالمي	رقم الرخصة الام
Register No.	40890	عضوية الغرفة
	Issue Date	11/05/1993
	Main License No.	230954
	DCCI No.	27239

الاطراف / License Members

Share / الحصص	Role / الصفة	Nationality / الجنسية	Name / الإسم	No./رقم الشخص
	Manager / مدير	India / الهند	الوك كومار دوبي رامكانت دوبي	436100
			ALOK KUMAR DUBE RAMAKANT DUBE	

أنشطة الرخصة / License Activities

Activity	Status	الحالة	النشاط
Electrical Fitting Contracting	Active	فعال	اعمال التمديدات الكهربائية
Solar Panels Assembling	Active	فعال	تجميع الواح الطاقة الشمسية
Electromechanical Equipment Installation and Maintenance	Active	فعال	اعمال تركيب المعدات الكهروميكانيكية وصيانتها
Onshore & Offshore Oil & Gas Fields Services	Active	فعال	خدمات حقول ومنشآت النفط والغاز البرية والبحرية
Automated Car Parking Systems Installation & Maintenance	Active	فعال	اعمال تركيب أنظمة مواقف السيارات الالية وصيانتها
Alternative Energy Equipment Installation and Maintenance	Active	فعال	تركيب وصيانة معدات الطاقة البديلة
Fire Fighting Safety Equipment Installation	Active	فعال	تركيب معدات السلامة واطفاء الحريق

Print Date 30/07/2025 11:17 تاريخ الطباعة

Receipt No.

رقم الإيصال

يمكنك الآن تجديد رخصتك التجارية من خلال الرسائل النصية القصيرة، أرسل رقم الرخصة إلى 6969 (دو/ اتصالات) للحصول على إذن الدفع.

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number to 6969 (Du / Eticalat) to receive payment voucher.

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وثيقة إلكترونية معتمدة وصادرة بدون توقيع من دائرة الاقتصاد والسياحة في دبي. لمراجعة صحة البيانات الواردة في الرخصة يرجى مسح رمز الاستجابة السريعة

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العنوان / Address			
صندوق بريد	26736	P.O. Box	تليفون
رقم القطعة	369-935	Parcel ID	فاكس
البريد الإلكتروني	asank@primetechnologies.ae	Email	هاتف متحرك
مستودع رقم (2) ملك مؤسسة دبي العقارية - بر دبي - القوز 4			
الملاحظات / Remarks			
إصدار تراخيص المشاريع مرتبط بالاشتراطات الواردة في شهادة سجل المزاولة الفنية الصادرة من البلدية - الاطلاع على السجل من خلال الرابط: deqsmart.dm.gov.ae			

Print Date 30/07/2025

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رقم الإيصال



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ملحق الشركاء Partners

تفاصيل الرخصة / License Details

رقم الرخصة 230954 License No. الرقم العالمي 535267785 D&B D-U-N-S ® No.

اصحاب الرخصة / License Partners

Share / الحصص	Sr. No./مسلسل الشخص	Nationality / الجنسية	Name / الإسم
99.0000000%	822008	الامارات / United Arab Emirates	ECONOMIC GROUP HOLDINGS L.L.C / ايكونوميك جروب هولدينجز ذ.م.م
1.0000000%	379128	الامارات / United Arab Emirates	Sultan Majid Hamad Binsaqar Alqasemi / سلطان ماجد حمد بن صقر القاسمي

Print Date 30/07/2025 11:17 تاريخ الطباعة

Receipt No.

رقم الإيصال



يمكنك الآن تجديد رخصتك التجارية من خلال الرسائل النصية القصيرة، أرسل رقم الرخصة إلى 6969 (دو/ اتصالات) للحصول على إذن الدفع.

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شهادة تسجيل لضريبة القيمة المضافة في الامارات العربية المتحدة
Certificate of Registration for Value Added Tax in the United Arab Emirates

The Federal Tax Authority certifies that the entity below is
a registered person for Value Added Tax in the UAE

تشهد الهيئة الاتحادية للضرائب أن الجهة التالية مسجلة لضريبة القيمة
المضافة في الامارات العربية المتحدة

Full Arabic legal name	<u>الصفوة للتقنية شركة ذات مسئولية محدودة</u>	الاسم القانوني الكامل باللغة العربية
Full English legal name	<u>PRIME TECHNOLOGIES (L.L.C.)</u>	الاسم القانوني الكامل باللغة الانجليزية
Registered address	<u>Prime Technologies, Al Quoz Industrial Area- 4, Al Quoz Industrial Area 4, Dubai, Dubai, United Arab Emirates, 26736, +97143256555</u>	العنوان المسجل
Tax Registration Number	<u>100395021700003</u>	رقم التسجيل الضريبي
Effective Registration Date	<u>01/01/2018</u>	تاريخ التسجيل الفعلي
First VAT Return Period	<u>1 Jan 2018 – 31 Mar 2018 and quarterly thereafter</u>	فترة أول إقرار لضريبة القيمة المضافة
VAT Return due date	<u>28th day following the end of the VAT return period</u>	تاريخ استحقاق إقرار ضريبة القيمة المضافة
Start and end dates of Tax periods:	1 Apr to 30 Jun, 1 Jul to 30 Sep, 1 Oct to 31 Dec, 1 Jan to 31 Mar	بداية ونهاية الفترات الضريبية

يرجى التأكد من صحة تفاصيل الشهادة. يجب إبلاغ الهيئة الاتحادية للضرائب في حال تغيير الاسس التي حصلت فيها على رقم التسجيل الضريبي الخاص بك.

Please check that the details on this certificate are correct. You must inform the Federal Tax Authority of any change on the basis of which you obtained your Tax Registration Number.



Issuing Date: 27/01/2018

تاريخ الإصدار



SN2024/0000024941



ملحق عقد تأسيس شركة ذ.م.م

PRIME TECHNOLOGIES L.L.C

الصفوة للتقنية شركة ذات مسئولية محدودة
ش ذ م م

بيانات أطراف المعاملة

بيانات شريك			
الاسم	نوع الرخصة	رقم الرخصة	الصفة القانونية
ايكونوميك جروب هولدينجز ذ م م	رخصة تجارية	٨٦١٨٣٥	١. شريك منشأة (اسم المنشأة: الصفوة للتقنية شركة ذات مسئولية محدودة ش ذ م م رقم الرخصة: ٢٣٠٩٥٤) جهة ترخيص المنشأة: دائرة الاقتصاد والسياحة - دبي

بيانات ممثل الشريك					
الاسم	الجنسية	نوع الوثيقة	رقم الوثيقة	العلاقة	وثيقة الإنابة
الشيخ سلطان ماجد حمد ماجد القاسمي	الإمارات	هوية	٧٨٤١٩٨٥٠٧٣٥٧٥١٩	وكيل	وكالة عامة مصدقة بإمارة الشارقة ٣١٥/٢٠١٨

بيانات الشريك				
الاسم	الجنسية	نوع الوثيقة	رقم الوثيقة	الصفة القانونية
الشيخ سلطان ماجد حمد ماجد القاسمي	الإمارات	هوية	٧٨٤١٩٨٥٠٧٣٥٧٥١٩	١. شريك منشأة (اسم المنشأة: الصفوة للتقنية شركة ذات مسئولية محدودة ش ذ م م رقم الرخصة: ٢٣٠٩٥٤) جهة ترخيص المنشأة: دائرة الاقتصاد والسياحة - دبي

تمهيد:

سبق وأن تأسست شركة (الصفوة للتقنية شركة ذات مسئولية محدودة ش ذ م م) استناداً إلى عقد التأسيس الموثق لدى الكاتب العدل بدبي بتاريخ ١٩٩٢/١١/١٥ م، بموجب المحرر رقم: (٩٢/١٣١٢٨)، والملحق رقم (١) الموثق بتاريخ: ١٩٩٢/٠٣/١٧ م، بموجب المحرر رقم: (٩٢/٣١٧٤)، وعقد التأسيس المعدل والموثق بتاريخ: ٢٠٠٢/١٢/٠٦ م، بموجب المحرر رقم: (٢٠٠٢/٤٦٥٤٩)، واتفاقية بيع وتنازل عن حصص موثقة بتاريخ: ٢٠٠٥/١٠/٠٢ م، بموجب المحرر رقم (٢٠٠٥/١/٥٨٢١٣)، (اتفاقية البيع رقم "١")، وكافة التعديلات اللاحقة على عقد التأسيس وعقد البيع والتنازل عن الحصص وملحق عقد التأسيس الموثق بتاريخ: ٢٠١١/١١/٠٢ م، بموجب المحرر رقم (٢٠١١/١/٤٩٨٦٤)، (عقد البيع رقم "٢")، وعقد البيع والتنازل عن الحصص والملحق لعقد التأسيس الموثق بتاريخ: ٢٠١٢/١١/١٢ م، بموجب المحرر رقم: (٢٠١٢/١/١٧٥٥٣٤) (عقد البيع رقم "٣")، وعقد البيع والتنازل عن الحصص والملحق لعقد التأسيس الموثق بتاريخ: ٢٠٢٠/١٢/٠٨ م، بموجب المحرر رقم: (٢٠٢٠/١/٢٢٢٧٠) (عقد البيع رقم "٤") وبشار إليها هنا وفيما بعد بكلمة (الشركة)، وقد صدرت للشركة الرخصة رقم (٢٣٠٩٥٤) من جهة الاختصاص. وحيث يرغبون الشركاء المذكورون أعلاه في إبرام هذا العقد لذا فقد وافق على الأحكام والشروط الآتية:

البند الأول:

يعتبر التمهيد السابق جزءاً لا يتجزأ من هذا العقد.

البند الثاني:

تعديل عقد التأسيس:



SN2024/0000024941



ثانياً: تعديل المادة (7)

إدارة الشركة :-

1. إتفق الشركاء علي أن يكون مدير الشركة هو :

السيد / الوك كومان رامكانت دوبي دوبي ، هندي الجنسية - يحمل بطاقة هوية بالرقم: 784196842427260 ، تاريخ الميلاد 04/05/1968

المدير:

2. يتم تعيين المدير لمدة (غير محددة) تبدأ اعتباراً من تاريخ تسجيل الشركة في السجل التجاري وتجدد تلقائياً لمدد مماثلة ما لم يتفق على خلاف ذلك ويجوز إعادة تعيين المديرين الذين انتهت مدة تعيينهم ويكون المدير قابلاً للعزل طبقاً لقانون الشركات التجارية أو بالطريقة التي يتفق عليها الشركاء في الجمعية العمومية.

3. تفويض وصلاحيات المدير :

يتمتع المدير بكافة الصلاحيات الضرورية لإدارة الشركة وتمثيلها والتوقيع بالإجابة عنها والاضطلاع بكافة التصرفات المطلوبة من خلال أغراض الشركة. تتمثل صلاحيات المدير/ المدراء فيما يلي:

يضطلع المدير بتمثيل الشركة و ينوب عنها أمام كافة الدوائر الحكومية المحلية و الاتحادية و تشمل هيئة الصحة ووزارة الصحة، الطرق و المواصلات، الدفاع المدني، المطار الخ،، و الجهات التنظيمية و جمارك الموانئ و دائرة التنمية الاقتصادية و الشرطة و الهجرة و المحاكم و النيابة العامة و غرفة التجارة و الصناعة و أي شركة و مؤسسة لتنفيذ أي شأن قانوني فيما يتعلق بالأعمال في مصلحة الشركة من وقت لآخر.

4. مسئوليات المدير

المدير مسئول عن كافة أنشطة الأعمال التجارية مثل أنشطة المبيعات والخدمات و الإنتاج و التشغيل و الإدارة المتصلة بالشركة

المبيعات والخدمات

اتخاذ الخطوات اللازمة لتحقيق المبيعات المستهدفة.

اتخاذ الاجراءات اللازمة لزيادة و الاحتفاظ بالعملاء.

اتخاذ الخطوات اللازمة لتحصيل الذمم المدينة في موعدها لتجنب تجاوز الديون لموعد سدادها و الديون المتعثرة.

فحص مستندات تقييم عملاء الائتمان و التقييم و التوصية

الانتاج/العمليات

تطبيق إجراءات التشغيل القياسية على كافة النواحي وفقاً لطبيعة الصناعة.

ضمان اتباع الممارسة القياسية وفقاً لممارسات الصناعة.

الترتيب للصيانة الدورية للأجهزة و المركبات و الأدوات و المعدات.

ترتيب الشهادات للمعدات و الأدوات والأجهزة لضمان المعايرة.

توفير التدريب الجيد على الاستخدام الآمن للأجهزة والمعدات و الأدوات.

ضمان التخلص من مواد النفايات حسب موجهات الحكومة أو الهيئة.

اتخاذ الخطوات الكافية لضمان الجودة بما في ذلك الجودة و الكمية و وحدة القياس و انتهاء الصلاحية.

ضمان ملائمة مكان العمل و المصنع و الورشة و المعرض و المكاتب الخ،،

الإدارة والحسابات

التخطيط و المراقبة الكاملة لوحدة الأعمال بما في ذلك الفروع (داخل وخارج الدولة)، و مواقع المشاريع و المصانع و الورش و المخازن و المعارض و المكاتب و أماكن العمل الخ،،، و نظام مسك دفاتر جيد.



- الاحتفاظ بالسجلات و المستندات.
- الاحتفاظ بدعم جيد لنظام (الكمبيوتر) قاعدة البيانات.
- شراء مستندات و نماذج طلبات العطاءات.
- تحديد تكلفة إجراءات المراقبة من كافة النواحي.
- ترتيب عروض أسعار تنافسية للحصول على أفضل اسعار لكافة المشتريات.
- ضمان توفير البرمجيات حسب متطلبات الصناعة أو الأعمال.
- توفير تغطية التأمين ضد كافة المخاطر للممتلكات و المشروعات و المسؤولية العامة و المخزون و الأموال و التأمين ضد خيانة الموظفين و تأمين المركبات و تعويض العمالة و التأمين الطبي الخ،،
- توفير التدريب اللازم للموظفين و العمال من كافة الفئات لتحسين الكفاءة.
- توفير الرعاية للموظفين.
- التقيد بكافة المتطلبات القانونية حسب ما يعتبر ملائماً و يشمل ذلك معايير الصحة و السلامة والبيئة.
- قواعد السلوك
- توفير نظام الاحصاء البيولوجي لحضور الموظفين في كافة مواقع العمل.
- التأكد من إجراءات تعيين الموظفين مثل التأشيرات و تصاريح العمل و اللياقة الطبية و السكن الخ،،،
- تنفيذ ومتابعة سياسات الحكومة الاتحادية و المحلية مثل الهيئات و الجهات التنظيمية و البلدية الخ،،،
- توفير حارس أمن محترف و التأكد من وضع كاميرات مراقبة لحماية أصول الشركة.
- توفير مخازن جيدة لمخزون المواد الخام و البضائع التجارية.
- توفير القوى العاملة الجيدة لتنظيف أماكن العمل للحفاظ عليها بصورة نظيفة وصحية.
- توفير معدات السلامة اللازمة بما في ذلك طفايات الحريق.
- ضمان أن ضريبة القيمة المضافة والضرائب الأخرى يتم تنفيذها بصورة سليمة.
- الالتزام بـ "سياسة الائتمان" الخاصة بالشركة.
5. يجوز للشركاء إصدار وكالة مستقلة للمدير لكافة أو لأي من تلك الصلاحيات.

البند الثالث:

تبقى باقي شروط ومواد عقد التأسيس الأخرى كما هي دون تعديل ويسري العمل بها بين الشركاء إلى المدى الذي لا يخالف أحكام هذا العقد.

البند الرابع:

على مدير الشركة التأشير بهذا التعديل والحلول في السجلات الخاصة بذلك والإشهار عنه في السجل لدى الجهة الرسمية المختصة.

البند الخامس:

تم إنجاز هذه المعاملة إلكترونياً و لا تحتاج أي ختم أو توقيع إضافي	رقم الطلب: 2024/24941	صفحة 3 من 8	رقم المحرز: 1/2024/50775
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يعتبر هذا العقد جزءاً لا يتجزأ من عقد التأسيس ومكملاً له ويقرأ ويفسر معه.

Preamble:

The company (PRIME TECHNOLOGIES L.L.C) pursuant to the Memorandum of Association, notarized by the Dubai Notary Public on 15/11/1992 instrument no. (13138/92), Addendum (1) notarized on 17/03/1993 instrument no.(3674/93), Revised Memorandum of Association notarized on 06/12/2003 instrument no. (46549/1/2003), Agreement for the Sale and Assignment of Shares, notarized on 02/10/2005 instrument no. (58213/1/2005) ("Sale Agreement - 1"), subsequent all the MOR's addendums, Sale & Assignment of Shares Contract and Amendment to the MOR notarized on 02/11/2011 instrument no. (149864/1/2011) ("Sale Contract -2"), and the Sales & Assignment of Shares Contract and Amendment of MOR notarized on 12/11/2012 instrument no. (175534/1/2012) ("Sale Contract - 3"), and the Sales & Assignment of Shares Contract and Amendment of MOR notarized on 08/12/2020 instrument no. (212270/1/2020) ("Sale Contract - 4")and it is referred to here and later the word (the company), and the company was issued to License No. (230954) from the jurisdiction.

Whereas, the above -mentioned partners want to conclude this contract, so it has agreed to the following terms and conditions:

Article 1:

The foregoing preamble is an integral part of this contract.

Article 2:

Amending the Memorandum of Association:

AMENDMENTS OF ARTICLE (7)

MANAGEMENT OF THE COMPANY

1. The partners have agreed that the Manager of company shall be :

Mr. Alok Kumar Ramakant Dube Dube, Indian National, Holder of Emirates ID No.:784196842427260 , Date of Birth: 04/05/1968
Manager:

2. The Manager shall be appointed for a period (Unlimited) Gregorian Years commencing from the date of registration of the Commercial Register. Renewable automatically unless otherwise has been agreed upon It shall be permissible to reappoint the directors whose period of appointment have or has expired the director shall be subject to removal in accordance with the Commercial Companies Law or in such manner as the partners shall agree at a General Assembly.

3. Manager's Authority & Powers

The Manager shall have necessary powers and responsibilities to manage the company's day to day affairs, planning and controlling of business operations.

The Manager shall represent on behalf of the company in all Federal and Local Government department such as authorities Health Authority, and ministry of Health, Transport, Civil aviation, Airport, etc.], regulators, Municipality, port custom, Economic departments, police, Immigration, courts, Public prosecution, chamber of Commerce & Industry, any company and establishment to execute any legal matter related to the business in the interest of the company from time to time.

4. Manager's responsibilities

The Manager is responsible for all the business activities such as sales, service, production, operations and administration related activities of the company.

Sales & Services

Take the necessary steps in achieving sales target.

Take adequate measures to increase and retain customers.

Take necessary steps for collection of receivables on time to avoid overdue and bad debts.

Scrutiny of documents for credit customers' evaluation and recommendation



Production/operations

Implement the Standard Operating Procedure [SOP] in all respects as per the industry nature.

Ensure to follow the standard practice as per the industry practices

Arrange periodical maintenance of plant, vehicles, tools and equipment.

Arrange certificate for plant, tools and equipment to ensure the calibration.

Arrange proper training for safety usage of plant, tools and equipment.

Ensure to dispose the waste materials as the government or authority guidelines.

Take adequate step for quality assurance including product quality, quantity, unit of measurement [UOM] and expiry

Ensure the appropriateness/suitability of workplace, factory, workshop, showroom, offices, etc.

Administration & Accounts

Complete Planning and controlling business units including its branches [inside and outside the country], project sites, factories, workshops, stock yard, showrooms, offices, business places, etc.,

Proper book keeping system

To maintain the records and documents

To maintain proper backup for system based [computer] data base.

Purchase tender documents and applications

Cost control measures in all respects.

Arrange competitive quotes for getting better rates for all procurements

Ensure the necessary software in place as per the industry or business requirement

Arrange insurance coverage such as Property All risk, projects, Public liability, inventories, money, fidelity, vehicles workman compensation, medical, etc.,

Arrange necessary training for all category staff and workers to improve the efficiency

Arrange welfare for employees.

Comply with all statutory requirements as deemed appropriate including Safety, Health and Environment [HSE] standards.

Code of conduct

Arrange bio-metric system in all work places for employee attendances.

Ensure the procedures of employee placement such as visa, work permit, medical fitness, accommodation, etc.,

Implement and follow the policy of federal & local Government such as Authorities, regulators, municipality, etc.,

Arrange professional security guard and ensure the placement of CCTV cameras to safe guards the company assets.

Arrange proper storage for inventory of raw materials and trading goods.

Arrange proper man power for cleaning of work places to keep in neat and hygiene.

Arrange necessary safety equipment including fire extinguishers.

Ensure VAT & other taxations are executed in proper manner.

Adhere to "Credit Policy" of the company.

5. The partners may issue an independent Power of Attorney or Board Resolution to any of all/ any other powers.

Article 3:

The rest of the other terms and articles of the Memorandum of Association shall remain unchanged and shall apply between partners to the extent that they do not violate the provisions of this contract.



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Article 4:

The manager of the company must indicate this amendment and solution in the records related to this and announce it in the record with the competent official authority.

Article 5:

This contract is considered an integral part of the Memorandum of Association, complements it, and shall be read and interpreted with it.

رقم المحرر: 1/2024/50775	صفحة 6 من 8	رقم الطلب: 2024/24941	تم إنجاز هذه المعاملة إلكترونياً و لا تحتاج أي ختم أو توقيع إضافي
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اسم الطرف/النائب	التوقيع	تاريخ و وقت التوقيع	تاريخ و وقت الحضور
الشيخ سلطان ماجد حمد ماجد القاسمي (نائب رقم 1 للشريك رقم 1)		13:42:46 18-01-2024	
الشيخ سلطان ماجد حمد ماجد القاسمي (شريك رقم 2)		13:41:35 18-01-2024	



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 GOVERNMENT OF DUBAI		الكاتب العدل الخاص (فهد الحوسني للمحاماة والاستشارات القانونية ش.ذ.م.م)		 DUBAI COURTS	
رقم الطلب: ٢٠٢٤/٢٤٩٤١	رقم الإيصال: ٢٠٢٤/٣٨٢٩٨	رقم المحرر: ٥٠٧٧٥/١/٢٠٢٤	تاريخ الإصدار: ٢٠٢٤-١١-١٨		
الكاتب العدل فهد محمد عبدالله خميس الحوسني		تمت المصادقة على التوقيع باستخدام تقنيات التعاملات الرقمية.			
 SN2024/24941/N4299463					
www.dc.gov.ae					

للتأكد من صحة المحرر يمكنك مسح هذا QR أو استخدام موقع محاكم دبي



IN WITNESS whereof these presents have been entered into the day and years first before written.

Signed for and on behalf of the Purchaser:

.....

Name:

Designation:

In the presence of:

Witness 1: Procurement Manager

Project Director / Project Manager

Sign:.....

.....

Name:.....

.....

Witness 2 : Commercial Manager

Managing QS / Sr. QS / QS

Sign:.....

.....

Name:.....

.....

Address: P.O Box 10079, Industrial Area 1 Jebel Ali, Dubai UAE

Signed for and on behalf of the Vendor:

.....

Name:

Designation:

In the presence of:

Witness:

Name:

Occupation:

Physical Address: